

# Intermediate Leader Legal Course

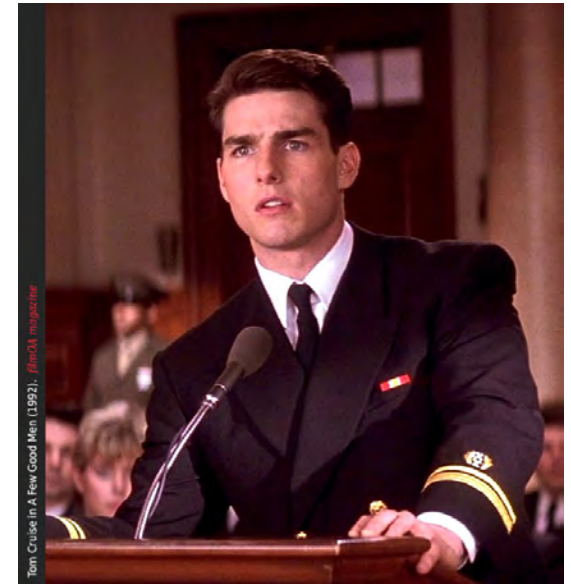
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# Who are Judge Advocates

- Navy Judge Advocates
  - Must graduate from ABA accredited law school
  - Must pass state bar exam
  - Officer Development School (unless already commissioned)
  - Naval Justice School
  - Initial Tour Judge Advocate Program

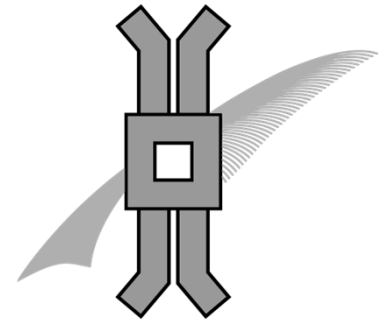




# Who are Legalmen

- Legalmen

- Requires cross-rate
- 13 weeks at Naval Justice School
- Associate's Degree in Paralegal Studies
- Supervised by judge advocates
- “Independent duty” at sea (some LHA/LHD and all NMCCBs are independent duty)





# Legal Officers/Legal Clerks

## ➤ Legal Officers

- All Navy commands that do not have an SJA must have trained Legal Officer
- Legal Officer is a collateral duty
- Graduate from Naval Justice School's Legal Officer Course

## ➤ Legal Clerks

- Legal Clerk is a collateral duty
- Graduate from Naval Justice School's Legal Clerk Course



# Roadmap

## Five Sections:

- 1) Intro to Legal Resources, the UCMJ, and Legal Authorities**
- 2) Investigations
- 3) Non-Punitive Measures and Naval Discipline
- 4) Government Ethics
- 5) Operational Law



# Role of the Staff Judge Advocate

SJAs are legal advisors; commanders ultimately make decisions. We represent the interests of the Department of the Navy.

As a lawyer, we advise commanders on what factors to consider in making decisions with legal implications. Many decisions have legal implications.

We give guidance on the level of risk each potential course of action carries.



# Which JAG to Use and Where to Find Them

## **Staff Judge Advocate (SJA):**

**Job:** Advises the commander they work for and sometimes their subordinate commanders, legal officers, and legalmen.

**Location:**  
-Flag/General Staff  
-O-6 Commands  
-Installation HQ

## **RLSO/LSSS Command Services Attorney:**

**Job:** Advises command representatives who call the hotline number to receive command advice.

**Location:**  
RLSO and LSSS in each Region (contact info in QUICKMAN)

## **RLSO/LSSS Legal Assistance Attorney:**

**Job:** Advises individual Sailors/Marines and dependents on civil legal issues, such as wills, divorces, etc.

**Location:**  
RLSO and LSSS in each Region (contact info in QUICKMAN)

## **Defense Attorney:**

**Job:** Advises individual Sailors/Marines on criminal and administrative or career-related issues.

**Location:**  
DSO in each Region (contact info in QUICKMAN)

## **Victim's Legal Counsel (VLC):**

**Job:** Advises individual Sailors/Marines and dependents who are the victim of a qualifying offense (usually sexual assault).

**Location:**  
Contacted through the Victim Advocate or SARC<sub>7</sub>



# Legal Aid Distinction

- When does a Sailor go to DSO for legal advice?
  - If it is possible disciplinary action will be taken.
- When does a Sailor go to RLSO Legal Assistance for legal advice?
  - Commercial issues, landlord-tenant, family law, etc.





# QUICKMAN



USN/USMC Commander's Quick Reference  
Legal Handbook  
(QUICKMAN)



March 2024



Most recent QUICKMAN available at:  
<https://www.jag.navy.mil/>

- USN/USMC Commander's Quick Reference Legal Handbook
- The most up-to-date version is available online.  
  
<https://www.jag.navy.mil/about/organization/ojag/njs/publications/>
- The QUICKMAN is intended to help spot and recognize legal issues. It is **not** a substitute for seeking advice from a Staff Judge Advocate.



What are legal resources available to you?

Legal Officer/Legal Clerk  
Legalman  
SJA at higher HQ  
QUICKMAN  
Region Legal Service Office



# Intro to Legal Authorities

## Hierarchy of U.S. Law

### Codified Law

U.S. Constitution is the supreme law of the land.

- Congress passes laws under *constitutional* authority.
- Executive Orders
- Executive Offices (e.g., FDA) and Executive Officers (e.g., SECNAV) promulgate rules by power given to them *by Congress*.
- Military officers issue orders by authority *given to them* by Congress, SECNAV, and the CNO.



- **Military law is federal law.**
- **Every law within the hierarchy must be consistent with the law above it.**



# Intro to Legal Authorities

- “I, AB, do solemnly swear (or affirm) that **I will support and defend the Constitution of the United States** against all enemies, foreign and domestic; ” – 5 U.S.C. § 3331
- “The purposes of military law are to promote justice, to deter misconduct, to facilitate appropriate accountability, to assist in maintaining **good order and discipline** in the armed forces, to promote **efficiency and effectiveness in the military establishment**, and thereby to strengthen the **national security** of the United States.” – MCM Part I, Preamble



# Purpose of Military Law

- Purpose of military law: Justice IOT strengthen national security
  - Good order and discipline
  - Accountable to the People
  - Actions scrutinized by enemies and allies
- For DIVO/DHs: protect your people while ensuring fair administration of justice and good order and discipline
- We respect the rights, constitutional and human, of others
- Ultimately: creates a service culture that enables us to adhere to LOAC in the stress of combat



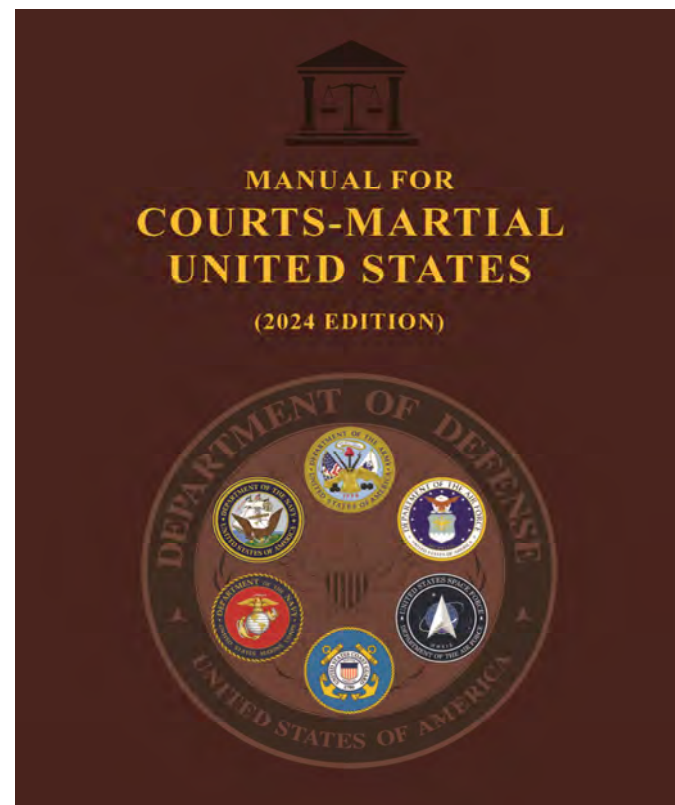
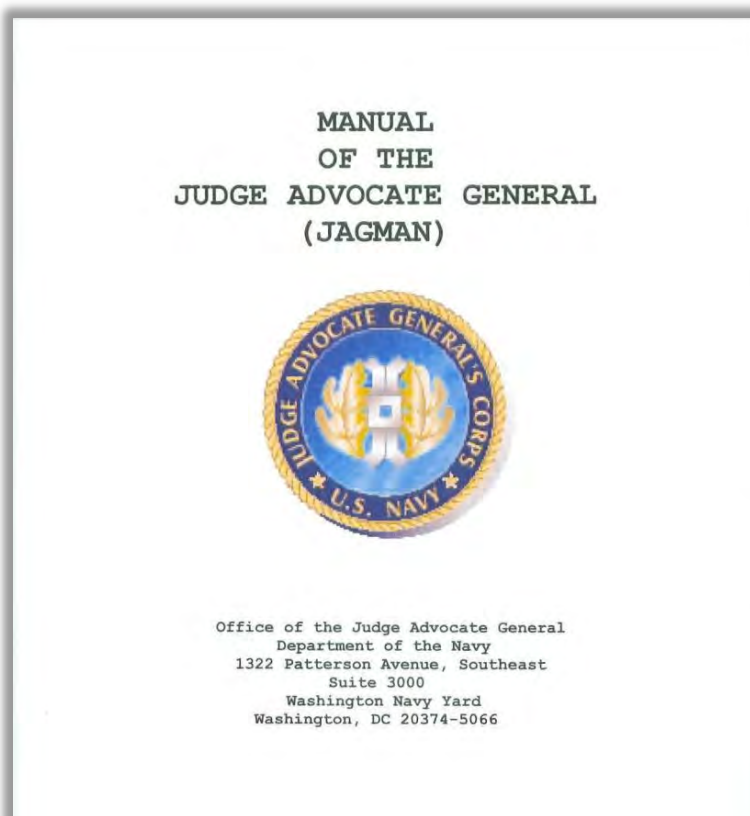
# References

**Manual of the Judge  
Advocate General  
(JAGMAN)  
JAGINST 5800.7G  
CH-2**

**Manual for Courts-  
Martial 2024 edition**

**JAGMAN  
Investigations  
Handbook**

**Complex  
Investigations Guide**





# QUESTIONS?



# Roadmap

## Five Sections:

- 1) Intro to Legal Resources, the UCMJ, and Legal Authorities
- 2) Investigations**
- 3) Non Punitive Measures and Naval Discipline
- 4) Government Ethics
- 5) Operational Law



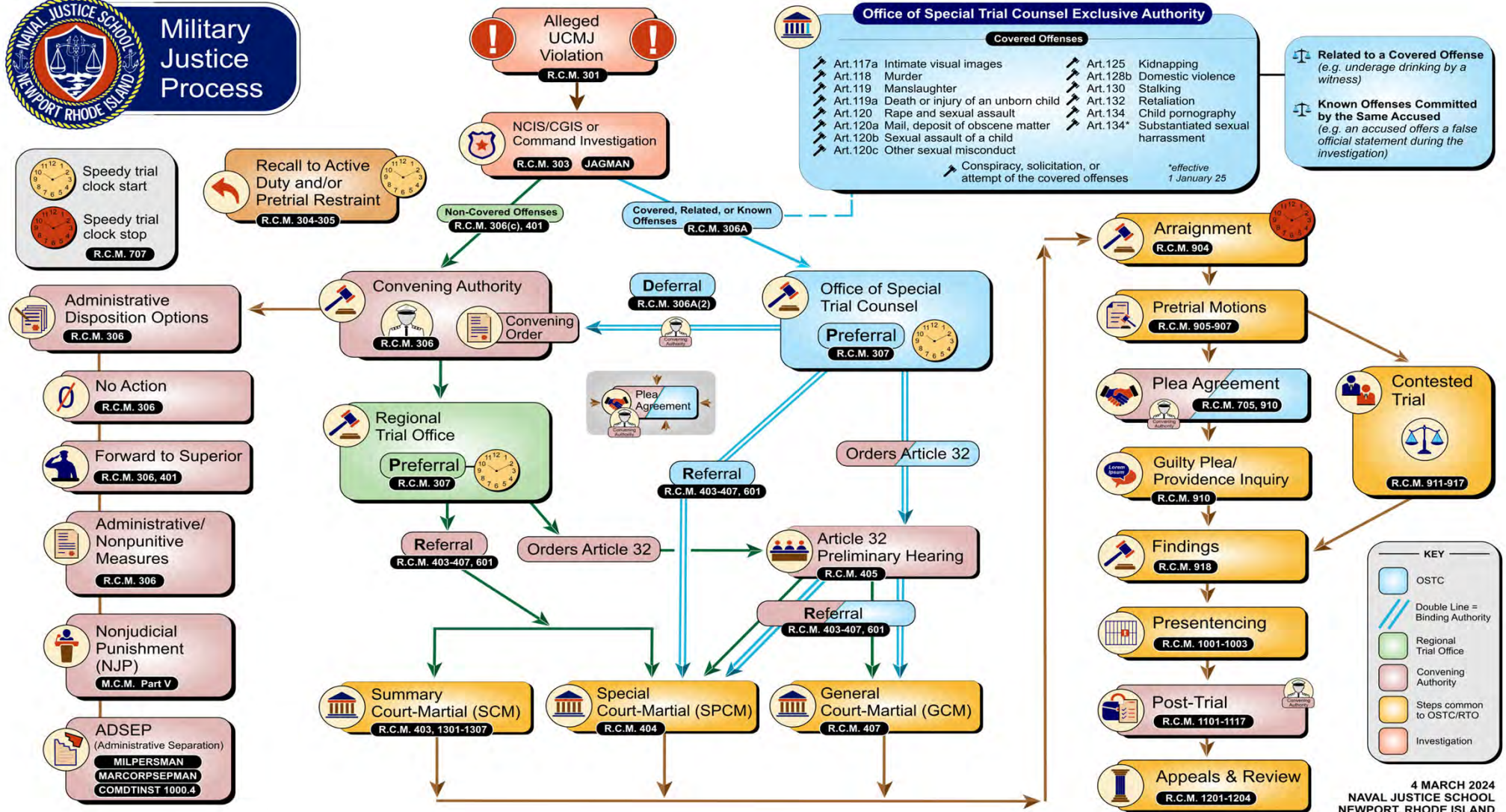


# Investigations

1. Types of Investigations
2. Where to Begin
3. 31(b) Rights Advisement
4. Search Authorization
5. Inspections and Inventories
6. Line of Duty Investigations



# Military Justice Process





# Administrative Investigations

QUICKMAN § III

JAGMAN Ch. 2, 11

Types of investigations include:

- **Preliminary Inquiry**
- **Command Investigation**
- Litigation-Report Investigation
- Admiralty Letter Report
- Dual Purpose Investigation
- Court/Board of Inquiry
  - “Major Incidents” – beyond scope of this course



QUICKMAN § III

JAGMAN 0203

R.C.M. 303

# Preliminary Inquiry

- Quick way for convening authority (CA) to get information
- Typically complete within three days
- Can be written or oral
- Can be done by CA or by appointed preliminary inquiry officer
- Gives enough information for CA to take next step:
  - No further action
  - Conduct an investigation
  - Consult a Judge Advocate
  - (Take disciplinary action)



# Command Investigation

QUICKMAN § III

JAGMAN 0209

- Formal tool to gather, analyze, and record relevant information
- Used for significant property loss/destruction, groundings, collisions, some line of duty determinations, some deaths
- Typically complete within thirty days
- Always written by appointed investigating officer (IO)
- Format specified in JAGMAN – must be in writing
- Reviewed by GCMCA unless “no interest outside unit”



# Investigations

1. Types of Investigations
- 2. Where to Begin**
3. 31(b) Rights Advisement
4. Search Authorization
5. Inspections and Inventories



QUICKMAN § I

DoDI 6495.02

SECNAVINST  
5430.107A

# Mandatory Referral to NCIS

- Major criminal offenses (punishable by more than one year of confinement)
- Sexual assault (120 offenses) - \*\*If the command received the report before it was restricted (under the new rules) or from a 3<sup>rd</sup> party, you are still required to contact NCIS\*\*
- Non-combat deaths, not due to disease or natural causes
- Missing command members when foul play cannot be ruled out
- Loss or compromise of classified information
- Fires or explosions of unknown origin
- Theft or loss of weapons, ordnance, or controlled substances
- Espionage, terrorism, sabotage, defection

If NCIS declines case, get it in writing (i.e., email)





# Office of the Special Trial Counsel (OSTC)

FY22 NDAA

FY23 NDAA

FY24 NDAA

Executive Order  
14103

Manual for Courts-  
Martial, 2024 Ed.

## Effective Date: 27 December 2023

- Reports alleging a covered offense must be sent to OSTC for exclusive determination of whether the reported offense is a ***covered offense***
- OSTC shall exercise exclusive authority over covered offenses committed on or after 28 December 2023
  - Covered offenses occurring before 28 December 2023 operate under current convening authority rules...but...
  - Language in NDAA's and new MCM gives OSTC authority over Covered offenses occurring on or after 28 December 2023





# OSTC - Covered Offenses

FY22/23/24 NDAAAs

Executive Order  
14103

Manual for Courts-  
Martial, 2024 Ed.

10 U.S.C. § 801(17)

***Covered Offense*** means commission, attempt or conspiracy to commit, or solicitation of:

- Art. 117a (Intimate Visual Images)
- Art. 118 (Murder)
- Art. 119 (Manslaughter)
- Art. 119a (Death or Injury of an Unborn Child)
- Art. 120 (Rape and Sexual Assault)
- Art. 120a (Mail, Deposit of Obscene Matter)
- Art. 120b (Sexual Assault of a Child)
- Art. 120c (Miscellaneous Sex Offenses)
- Art. 125 (Kidnapping)
- Art. 128b (Domestic Violence)
- Art. 130 (Stalking)
- Art. 132 (Retaliation)
- Art. 134 Child Pornography)

As of 1 Jan 2025, with formal substantiated complaint:

- Art. 134 (Sexual Harassment)



# Investigating Officers

JAGMAN Ch. 2

R.C.M. 303

JAGMAN  
Investigations  
Handbook

Complex  
Investigations Guide

- No required rank of IO, but:
  - IO should be senior to anyone who may be involved in incident under investigation
  - IO should not be within chain of command of those investigated or in affected division/department
  - IO does not have to be within command
- IO should consult judge advocate ASAP
- Key to writing a good investigation is good organization
- May need to manage IO's workload



# Investigations

1. Types of Investigations
2. Where to Begin
3. **31(b) Rights Advisement**
4. Search Authorization
5. Inspections and Inventories



# Article 31(b) Rights

QUICKMAN § I

UCMJ Article 31(b)

Military Rule of  
Evidence (M.R.E.) 305

JAGMAN 0176, A-1-o

OPNAV 5580/3

- Article 31(b) rights include:
  - Right to remain silent
  - Consequence of waiving right to remain silent
- Right to an attorney applies to custodial interrogation – best practice is to include it for all rights advisements
- Can use OPNAV 5580/3 or JAGMAN A-1-o

| DEPARTMENT OF THE NAVY<br>MILITARY SUSPECT'S ACKNOWLEDGEMENT AND WAIVER OF RIGHTS                                                                                                                                                                                                                                            |                    |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|
| Place: _____                                                                                                                                                                                                                                                                                                                 |                    |
| I, _____                                                                                                                                                                                                                                                                                                                     |                    |
| have been advised by _____                                                                                                                                                                                                                                                                                                   |                    |
| that I am suspected of _____                                                                                                                                                                                                                                                                                                 |                    |
| I have also been advised that:                                                                                                                                                                                                                                                                                               |                    |
| (1) I have the right to remain silent and make no statement at all;                                                                                                                                                                                                                                                          |                    |
| (2) Any statement I do make can be used against me in a trial by court-martial or other judicial or administrative Proceeding;                                                                                                                                                                                               |                    |
| (3) I have the right to consult with a lawyer prior to any questioning. This lawyer may be a civilian lawyer retained by me at no cost to the United States, a military lawyer appointed to act as my counsel at no cost to me, or both;                                                                                     |                    |
| (4) I have the right to have my retained civilian lawyer and/or appointed military lawyer present during this interview; and                                                                                                                                                                                                 |                    |
| (5) I may terminate this interview at any time, for any reason.                                                                                                                                                                                                                                                              |                    |
| I understand my rights as related to me and as set forth above. With that understanding, I have decided that I do not desire to remain silent, consult with a retained or appointed lawyer, or have a lawyer present at this time. I make this decision freely and voluntarily. No threats or promises have been made to me. |                    |
| Signature: _____                                                                                                                                                                                                                                                                                                             | Date & Time: _____ |
| Witnessed: _____                                                                                                                                                                                                                                                                                                             |                    |
|                                                                                                                                                                                                                                                                                                                              | Date & Time: _____ |
| At this time, I, _____, desire to make the following voluntary statement. This statement is made with an understanding of my rights as set forth above. It is made with no threats or promises having been extended to me.                                                                                                   |                    |

OPNAV 5580/3 (Rev. 11/2006) PREVIOUS EDITION IS OBSOLETE FOR OFFICIAL USE ONLY (When filed in)  
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# Article 31(b) Rights

## JAGMAN A-1-o

JAGINST 5800.7G, CH-2

SUSPECT'S RIGHTS ACKNOWLEDGEMENT/STATEMENT  
(See JAGMAN 0176)

|                             |               |         |
|-----------------------------|---------------|---------|
| FULL NAME (ACCUSED/SUSPECT) | RATE/RANK     | SERVICE |
| ACTIVITY/UNIT               | DATE OF BIRTH |         |
| NAME (INTERVIEWER)          | RATE/RANK     | SERVICE |
| ORGANIZATION                | BILLET        |         |
| LOCATION OF INTERVIEW       | TIME          | DATE    |

RIGHTS

(1) I am suspected of having committed the following offense(s):

(2) I have the right to remain silent; -----

(3) Any statement I do make may be considered by the convening authority and used as evidence against me in trial by court-martial; -----

(4) I have the right to consult with counsel before any questioning. This counsel may be a civilian lawyer retained by

A-1-o

JAGINST 5800.7G, CH-2

me at my own expense, a military lawyer appointed to act as my counsel without cost to me, or both; -----

(5) I have the right to have such retained civilian lawyer or appointed military lawyer present during this interview; and -----

(6) If I decide to answer questions now without a lawyer present, I will have the right to stop this interview at any time. -----

WAIVER OF RIGHTS

I further certify and acknowledge that I have read the above statement of my rights and fully understand them, and that, ---

(1) I expressly desire to waive my right to remain silent. -----

(2) I expressly desire to make a statement. -----

(3) I expressly do not desire to consult with either a civilian lawyer retained by me or a military lawyer appointed my counsel without cost to me before any questioning. -----

(4) I expressly do not desire to have such a lawyer present with me during this interview. -----

(5) This acknowledgement and waiver of rights is made freely and voluntarily by me, and without any promises or threats having been made to me or pressure or coercion of any kind having been used against me. -----

(6) I understand that, even though I initially waive my rights to counsel and to remain silent, I may, during the interview, assert my right to counsel or to remain silent. -----

NOTE: IF THE SUSPECT INDICATES HE OR SHE IS WILLING TO MAKE A STATEMENT, HE OR SHE SHOULD FIRST BE ASKED WHETHER HE OR SHE

A-1-o



# Cleansing Warnings

Cleansing warnings are used when previous statement may be inadmissible – use A-1-o

- While rules of evidence are not applicable for NJP or ADSEP, violation of rights could make statement inadmissible at court-martial.
- Appeal authorities can also decide to set aside NJP if rights are violated

JAGINST 5800.7G, CH-2

HAS MADE A STATEMENT IN RESPONSE TO QUESTIONS ABOUT THE SUSPECTED OFFENSE TO ANYONE HE OR SHE BELIEVED WAS ACTING IN A LAW ENFORCEMENT CAPACITY BEFORE THE PRESENT INTERVIEW. IF THE SUSPECT INDICATES HE OR SHE HAS PREVIOUSLY MADE SUCH A STATEMENT, ADVISE THE SUSPECT AS FOLLOWS:

#### PREVIOUS STATEMENTS

I certify and acknowledge by my signature and initials set forth below that, before the interviewer requested a statement from me, the interviewer warned me that:

(1) My previous statement may not be admissible at courts-

(1) My previous statement may not be admissible at courts-martial and may not be usable against me. (It may not be possible to determine whether a previous statement made by the suspect will be admissible at some future court-martial; this suggests it may be wise to treat it as inadmissible and provide the cleansing warning).

(2) Regardless of the fact that I have talked about this offense before, I still have the right to remain silent now.

having been made to me or pressure or coercion of any kind having been used against me.

SIGNATURE (ACCUSED/SUSPECT)

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

A-1-o



Sailors in your division were involved in an incident at a concert. A physical altercation ensued when ABHAN Jones slapped the buttocks of ABHAR Smith, followed by a third Sailor punching ABHAN Jones in the in the face. Your LCPO recommends divisional DRB.

- A. Allow the LCPO to proceed as planned.
- B. Allow the DRB to proceed so long as they read ABHAN Jones his UCMJ art. 31(b) rights.
- C. Do not allow your LCPO to proceed because this may constitute a sexual assault.



Instead of taking ABHAN Jones to DRB, should the command use a JAGMAN investigation to investigate this allegation of sexual assault?

Yes or No.





Which of the following allegations of misconduct can the command investigate with a JAGMAN investigation?

- A. sexual assault;
- B. sexual harassment;
- C. loss of classified info;
- D. drug use.



# Investigations

1. Types of Investigations
2. Where to Begin
3. 31(b) Rights Advisement
4. **Search Authorization**
5. Inspections and Inventories



# Search

## QUICKMAN § I

U.S. Constitution,  
4<sup>th</sup> Amendment

Military Rule of  
Evidence (M.R.E.)  
311

What is a search?

- A **quest** for evidence
- Conducted by a **Government Agent**
- Where a **reasonable expectation of privacy** exists

- 
- **NCIS?**
  - **CMC?**
  - **Department Head?**
  - **MA2?**
  - **Civilian?**



## “PASS” vs. “CASS”

QUICKMAN § I

QUICKMAN App. C

M.R.E. 311-316

JAGMAN 0176

- Command Authorized Search and Seizure (CASS)
- Best Practice: Start by asking for consent – Permissive Authorized Search and Seizure (PASS)
  - Get this authorization in writing!
  - Even if using PASS, still have CASS ready in case suspect revokes consent to search
- If you question whether suspect is able to consent to search, use a CASS



# Search Authorization

OPNAV 5580/16  
OPNAV 5580/9  
JAGMAN A-1-p  
JAGMAN A-1-q

| DEPARTMENT OF THE NAVY                                                                                                                                                                                                 |                    |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|
| <b>PERMISSIVE AUTHORIZATION</b>                                                                                                                                                                                        |                    |
| after being advised by _____                                                                                                                                                                                           |                    |
| that the _____                                                                                                                                                                                                         |                    |
| is conducting an investigation into the offense(s) of _____                                                                                                                                                            |                    |
| _____                                                                                                                                                                                                                  |                    |
| have been requested to permit a search of my _____                                                                                                                                                                     |                    |
| _____                                                                                                                                                                                                                  |                    |
| _____                                                                                                                                                                                                                  |                    |
| _____                                                                                                                                                                                                                  |                    |
| 2. CONSTITUTIONAL RIGHT                                                                                                                                                                                                |                    |
| I have been informed of my constitutional right to refuse to permit this search in the absence of a search warrant. In full understanding of this right, I have nevertheless decided to permit this search to be made. |                    |
| 3. PERMISSION                                                                                                                                                                                                          |                    |
| This search may be conducted on (date) _____                                                                                                                                                                           |                    |
| by _____                                                                                                                                                                                                               |                    |
| and I hereby give him/her/them my permission to remove and retain any property or papers found during the search which are desired for investigative purposes.                                                         |                    |
| 4. FREE DECISION                                                                                                                                                                                                       |                    |
| I make this decision freely and voluntarily and it is made with no threats having been made or promises extended to me.                                                                                                |                    |
| a. Date _____                                                                                                                                                                                                          | b. Signature _____ |
| 5. WITNESSES                                                                                                                                                                                                           |                    |
| a. Signature _____                                                                                                                                                                                                     | b. Signature _____ |
| 6. TIMES OF SEARCH                                                                                                                                                                                                     |                    |
| a. Start _____                                                                                                                                                                                                         | b. End _____       |

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| UNITED STATES OF AMERICA                                                                                                                                                                                                                                                                                                            |  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| <b>COMMAND AUTHORIZATION</b>                                                                                                                                                                                                                                                                                                        |  |
| vs. _____                                                                                                                                                                                                                                                                                                                           |  |
| To _____                                                                                                                                                                                                                                                                                                                            |  |
| Affidavit(s) having been made before me by _____                                                                                                                                                                                                                                                                                    |  |
| That there is reason to believe that on the person of and/or on the premises known as: _____<br><i>Identify the person and/or describe the premises with particularity and in detail</i>                                                                                                                                            |  |
| _____                                                                                                                                                                                                                                                                                                                               |  |
| _____ which is/are under my jurisdiction.                                                                                                                                                                                                                                                                                           |  |
| There is now being concealed certain property, namely: _____<br><i>Here describe the property</i>                                                                                                                                                                                                                                   |  |
| _____                                                                                                                                                                                                                                                                                                                               |  |
| I am satisfied that there is probable cause to believe that the property so described is being concealed on the person and/or premises above described and that grounds for application for issuance of a command authorized search exists as stated in the supporting affidavit(s).                                                |  |
| <b>YOU ARE HEREBY AUTHORIZED TO SEARCH</b> the person and/or place named for the property specified and if the property is found there to seize it, leaving a copy of this authorization and receipt for the property taken. You will provide a signed receipt to this command, containing a full description of every item seized. |  |
| Any assistance desired in conducting this search will be furnished by this command.                                                                                                                                                                                                                                                 |  |
| Date this _____ day of _____ 20 _____                                                                                                                                                                                                                                                                                               |  |
| Signature of Person Authorizing Search _____                                                                                                                                                                                                                                                                                        |  |
| Rank, Service, Title _____                                                                                                                                                                                                                                                                                                          |  |
| Command _____                                                                                                                                                                                                                                                                                                                       |  |

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# Command Authorized Search Authorization

QUICKMAN § I

QUICKMAN App. C

M.R.E. 315

JAGMAN 0176

- From commanding officer
- Can be oral or in writing
- **Based on probable cause** determination based upon evidence
- Search authority determined by location of evidence sought



# Probable Cause

QUICKMAN § I

M.R.E. 315

What is probable cause?

A **reasonable belief** that:

- A crime has been committed; and
- The person, property, or evidence sought is located in the place to be searched.

Commander must never rely on another's probable cause determination!



# Investigations

1. Types of Investigations
2. Where to Begin
3. 31(b) Rights Advisement
4. Search Authorization
- 5. Inspections and Inventories**





## QUICKMAN § I

M.R.E. 313

# Inspections and Inventories

An inspection is not a search, so long as it is done primarily for a military purpose:

- Security
- Military Fitness
- Good order and discipline
- Readiness

Probable cause and a search authorization are not required for an inspection.



# Inspections and Inventories

QUICKMAN § I

M.R.E. 313

An inspection/inventory will be suspect if:

- Unscheduled
- Follows a report of an offense
- Directed at selected individuals
- Involves different levels of intrusion

Evidence found during an improper inspection/inventory may be inadmissible at court-martial



BM2 showed up to work slurring his words, with blood shot eyes, and smelling of alcohol. You decide BM2 is intoxicated and cannot perform his duties. You want to see if anyone is hiding liquor. Can you order a health and comfort inspection of BM2's Rack?

Yes or No.



Can you authorize the search of BM2's rack?

Yes or No.



# Line of Duty Determinations

QUICKMAN § III

JAGMAN 0212-  
0232

MILPERSMAN  
1770-030, 1770-060

A line of duty determination is required when injury or disease may result in:

- Permanent disability; or
- The inability to perform duties for more than 24 hours; or
- Death

At minimum, all injuries/disease triggering a line of duty determination require a preliminary inquiry



# QUESTIONS?



# Roadmap

## Five Sections:

- 1) Intro to Legal Resources, the UCMJ, and Legal Authorities
- 2) Investigations
- 3) **Non-Punitive Measures and Naval Discipline**
- 4) Government Ethics
- 5) Operational Law



# Naval Discipline-Misconduct Overview

- Non-Punitive Measures:
  - Extension of Working Hours
  - Liberty Risk
  - Extra Military Instruction
- NJP
- ADSEP





QUICKMAN  
Section II

UCMJ Art. 15

MCM Part V

JAGMAN Ch. 1

# Non-Judicial Punishment

## **Authority to award Non-Judicial Punishment:**

- COs → All members of the command, including those who are TAD (TAD member's parent command can also award NJP)
  - Non-delegable for non-Flag Officers
- OICs → Enlisted members only

A commander cannot direct a subordinate to award NJP, but can withhold the authority for certain types of offenses, categories of persons, specific cases, or certain punishments.



# Non-Judicial Punishment

QUICKMAN  
Section II

JAGMAN Ch. 1

## **Disciplinary Review Board (DRB):**

- Fact finding?
- Behavior Correction?

## **Executive Officer Inquiry (XOI):**

- Additional opportunity for corrective action



# Non-Judicial Punishment

**\*\*ALNAV 091/23\*\***

QUICKMAN  
Section II

UCMJ Art. 15

MCM Part V

JAGMAN Ch. 1

- Right to refuse NJP unless attached to or embarked upon an “operational vessel”\*\*
- May exercise the right to refuse until NJP is actually awarded
- Cannot “demand” a court-martial
  - CO’s decision



# Non-Judicial Punishment

QUICKMAN  
Section II

UCMJ Art. 15

MCM Part V

JAGMAN Ch. 1

Rights of the Accused at NJP hearing:

- Be present
- Remain silent [Article 31(b) rights apply]
- Have a personal representative present (need not be a lawyer, not at government expense)
- Examine evidence (not entitled to personal copy)
- Present extenuating and mitigating evidence
- Have hearing open to the public (vs. Closed mast)
  - public is not the same as an all-hands mast

**Use the Rights Advisement found in the JAGMAN\*\***



## ARTICLE 15 PUNISHMENT LIMITATIONS

### Navy and Marine Corps

Appendix I of  
the  
QUICKMAN

| Imposed<br>By                           | Imposed<br>On | Confinement<br>3 days<br>(1) | Correctional<br>Custody<br>(2) | Arrest in<br>Quarters<br>(3) | Forfeitures<br>(4 & 5)     | Reduction<br>(4 & 6) | Extra<br>Duties<br>(7) | Restriction<br>(7) | Reprimand<br>or<br>Admonition<br>(4) |
|-----------------------------------------|---------------|------------------------------|--------------------------------|------------------------------|----------------------------|----------------------|------------------------|--------------------|--------------------------------------|
| Flags/Generals<br>in Command<br><br>(8) | Officers      | No                           | No                             | 30 Days                      | 1/2 of 1 Mo.<br>for 2 Mos. | No                   | No                     | 60 Days            | Yes                                  |
|                                         | E-4 to<br>E-9 | No                           | No                             | No                           | 1/2 of 1 Mo.<br>for 2 Mos. | 1 Grade              | 45<br>Days             | 60 Days            | Yes                                  |
|                                         | E-1 to<br>E-3 | Yes                          | 30 Days                        | No                           | 1/2 of 1 Mo.<br>for 2 Mos. | 1 Grade              | 45<br>Days             | 60 Days            | Yes                                  |
| O-4 to O-6<br><br>(8)                   | Officers      | No                           | No                             | No                           | No                         | No                   | No                     | 30 Days            | Yes                                  |
|                                         | E-4 to<br>E-9 | No                           | No                             | No                           | 1/2 of 1 Mo.<br>for 2 Mos. | 1 Grade              | 45<br>Days             | 60 Days            | Yes                                  |
|                                         | E-1 to<br>E-3 | Yes                          | 30 Days                        | No                           | 1/2 of 1 Mo.<br>for 2 Mos. | 1 Grade              | 45<br>Days             | 60 Days            | Yes                                  |
| O-3 / Below &<br>OICs<br><br>(9 & 10)   | Officers      | No                           | No                             | No                           | No                         | No                   | No                     | 15 Days            | Yes                                  |
|                                         | E-4 to<br>E-9 | No                           | No                             | No                           | 7 Days                     | 1 Grade              | 14<br>Days             | 14 Days            | Yes                                  |
|                                         | E-1 to<br>E-3 | Yes                          | 7 Days                         | No                           | 7 Days                     | 1 Grade              | 14<br>Days             | 14 Days            | Yes                                  |

- (1) May be awarded only if attached to or embarked in a vessel and may not be imposed with correctional custody, restriction, or extra duties (JAGMAN 0111(c), MCM, Part V, para. 5(d)(2))



# Non-Judicial Punishment

ALNAV 091/23

QUICKMAN  
Section II

UCMJ Art. 15

MCM Part V

JAGMAN 0116-0117

## UPDATE—Post-NJP Attorney Consultation

### Appeals:

- Submitted within 5 working days (CO can grant extension)
- Right to consult with military defense counsel concerning available opportunities to appeal and whether they should be pursued
- Only two bases for appeal:
  - Punishment was unjust
  - Punishment was disproportionate to the offense
- Appeal Authority:
  - USN: GCMCA
  - USMC: Next superior in chain of command
- Reviewed by GCMCA's SJA



# Enlisted Administrative Separation

## QUICKMAN Section V

### DODI 1332.14

“DoD will provide enlisted Service members with the training, motivation, and professional leadership to enable them to meet required standards of performance, conduct, and discipline.

- (1) Reasonable efforts should be made by the chain of command to identify enlisted Service members who exhibit the likelihood for early separation and improve their chances for retention through counseling, retraining, and rehabilitation.
- (2) **Enlisted Service members who do not demonstrate the commitment or potential for further service should be separated.”** [DODI 1332.14]



# Enlisted Administrative Separation

QUICKMAN  
Section V

DODI 1332.14

MILPERSMAN  
1910

## Reasons for Administrative Separation:

|                                              |                                  |
|----------------------------------------------|----------------------------------|
| Expiration of Service Obligation             | Security                         |
| Selected Changes in Service Obligation       | Disability                       |
| Convenience of the Government                | Misconduct                       |
| Alcohol Abuse Rehabilitation Failure         | Unsatisfactory Performance       |
| Drug Abuse Rehabilitation Failure            | Defective Enlistments/Inductions |
| Entry-Level Performance and Conduct          | Secretarial Plenary Authority    |
| Separation in Lieu of Trial by Court-Martial |                                  |





# Enlisted Administrative Separation

QUICKMAN  
Section V

MILPERSMAN  
1910-140

MILPERSMAN  
1910-142

## Common Misconduct Bases for ADSEP:

- Drug Abuse
- Commission of a Serious Offense
  - Punitive discharge warranted under UCMJ
  - Does not require Court-Martial or NJP
- Pattern of Misconduct
  - Two or more incidents in the same enlistment
  - USN: NJP → Page 13 → NJP



# Enlisted Administrative Separation

QUICKMAN  
Section V

DODI 1332.14

MILPERSMAN  
1910-233 (9 Oct 19  
update)

## **Mandatory Bases for Separation Processing:**

- Sexual misconduct
- Sexual harassment (certain circumstances)
- Violent misconduct which resulted in, or had potential to result in, death or serious bodily injury
- Possession of drug paraphernalia
- Drug abuse
- Unlawful use of designer drug/OTC drugs/prescription drugs
- Supremacist or extremist conduct
- FAP failure
- Alcohol Rehabilitation failure
- Second substantiated DUI
- Nonconsensual distribution or broadcasting of an intimate image



# Enlisted Administrative Separation

QUICKMAN  
Section V

DODI 1332.14

MILPERSMAN  
(1900 series)

## **ADSEP Procedures:**

### Notification Procedure:

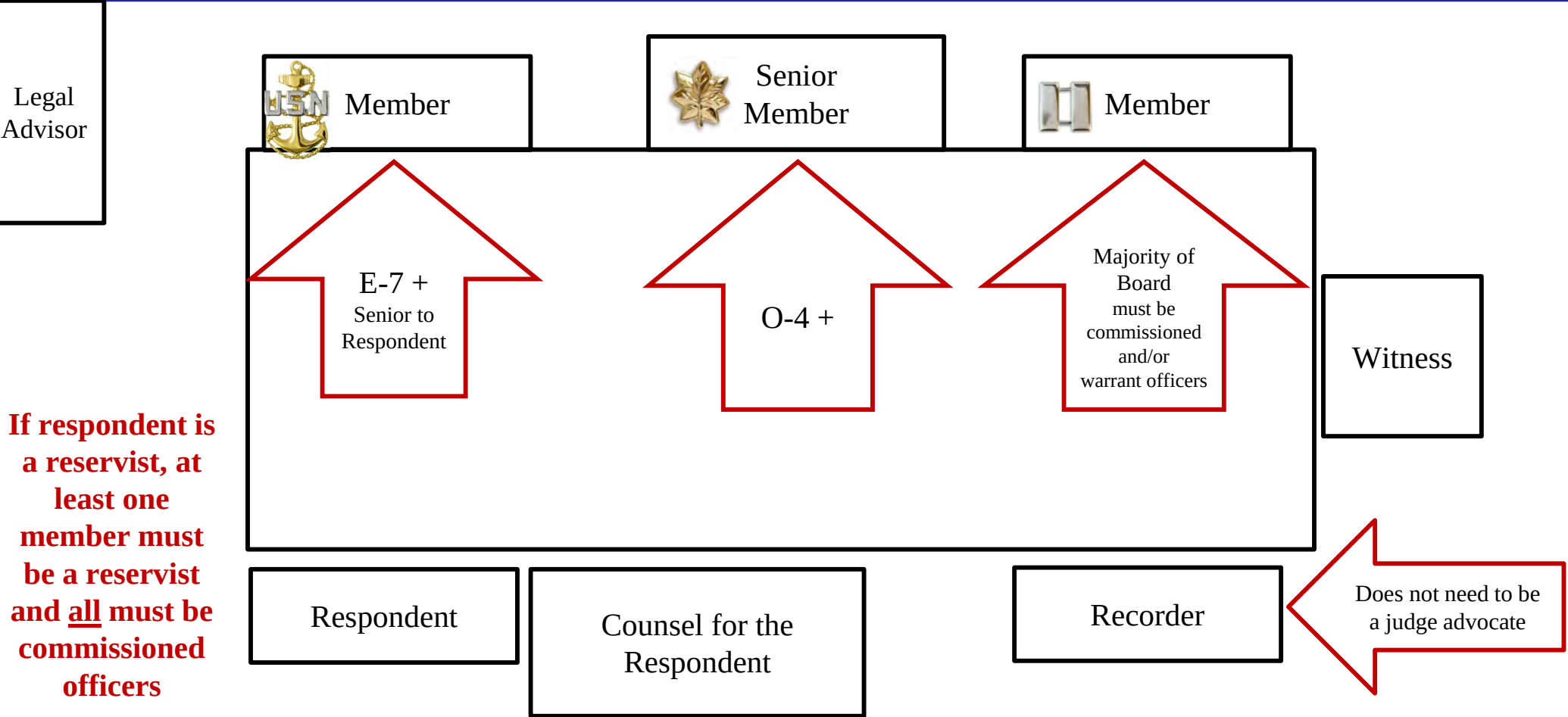
- Least favorable characterization is HON or GEN
- Members with 6 years or more of service can still elect a board

### Board:

- Least favorable characterization is OTH
- Always involves a board (unless waived)



# Enlisted Administrative Separation





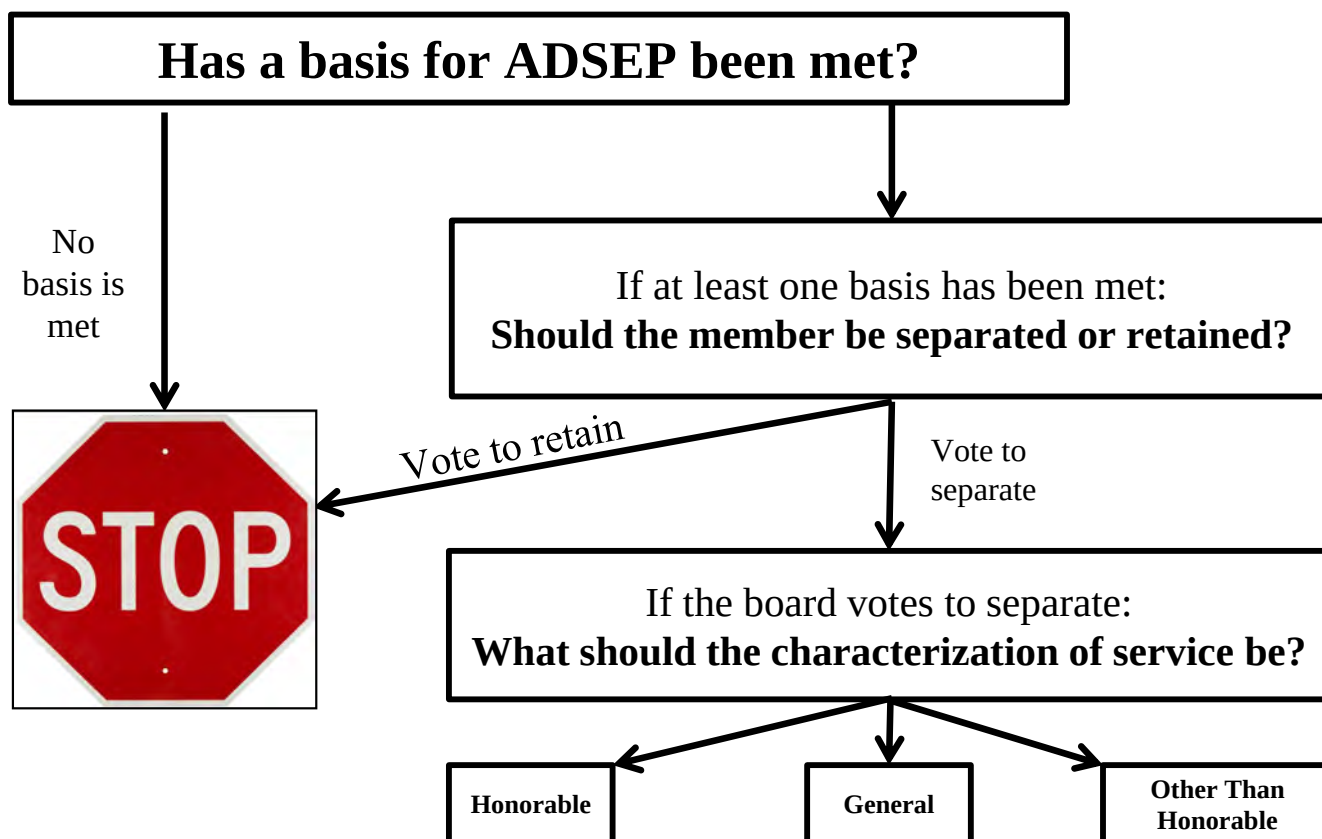
# Enlisted Administrative Separation

QUICKMAN  
Section V

DODI 1332.14

MILPERSMAN  
1910-516

## Board Findings:





# QUESTIONS?



# Roadmap

## Five Sections:

- 1) Intro to Legal Resources, the UCMJ, and Legal Authorities
- 2) Investigations
- 3) Non-Punitive Measures and Naval Discipline
- 4) Government Ethics**
- 5) Operational Law



# Why Standards of Conduct Training?

**“Those entrusted by our nation with carrying out violence, those entrusted with the lives of our troops, and those entrusted with enormous sums of taxpayer money must set an honorable example in all that we do.”**

--Former Secretary of Defense James Mattis





# Why Standards of Conduct Training?

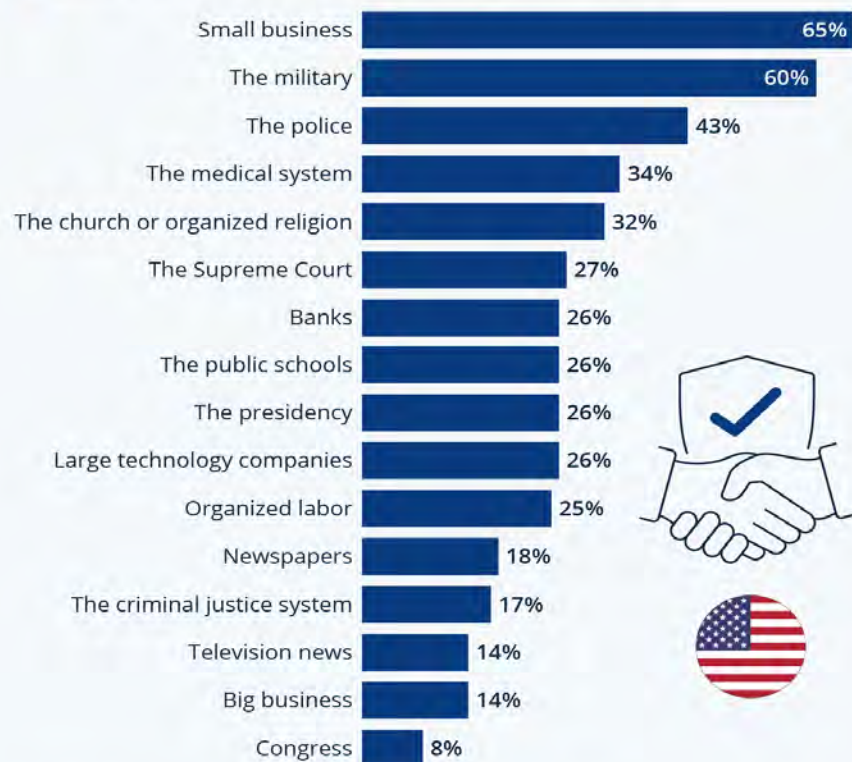
“The principle that Public Service is a Public Trust forms the basis for these [Standards of Ethical Conduct]. Public service also comes with the responsibility to place our loyalty to the Constitution, laws, and ethical principles above private gain. The basic principle of public service and the responsibility that comes with it are not aspirational goals. These are requirements that we must put into use every day when making decisions in both our personal and professional lives.”

**--- Secretary of the Navy Carlos Del Toro**



## The Institutions Americans Trust Most And Least

Share of U.S. respondents who say they have a great deal/ quite a lot of trust in the following institutions



1,013 U.S. respondents (18+ y/o) surveyed Jun. 1-22, 2023  
Source: Gallup



statista

## Why do we care?

- Doing the right thing
- International credibility  
(which we need to get the mission done)
- Domestic credibility  
(which we need to keep our budget/resources)
- It's the law  
(you can get in trouble, and so can your boss)



# References

- Standards of Ethical Conduct for Employees of the Executive Branch (5 C.F.R. 2635)
- Joint Ethics Regulation (DoD Directive 5500.07-R)

**These rules are punitive!**



# Gifts

5 C.F.R. § 2635.202

**General Rule: An employee shall not solicit or accept a gift:**

- From a prohibited source; or
- Given because of the employee's official position



# Gifts

5 C.F.R. §  
2635.203(b)

What is a gift? Anything of value, including:

- Gift Certificates/Money
- Meals
- Tickets
- Discounts
- Upgrades
- Favors





# Prohibited Sources

5 C.F.R. §  
2635.203(d)

What is a prohibited source?

Any entity or person:

- Doing/seeking to do business with the DoD/DoN;
- Seeking official action by the DoD/DoN; or
- Whose interests are substantially impacted by the performance of your official duties (e.g. contractors)



# Gifts - Exceptions

5 C.F.R. § 2635.204

5 C.F.R. § 2635.205

5 C.F.R. § 3601.103

- 20/50 Rule
- Personal Relationship
- Awards and honorary degrees
- Outside employment
- Spouse's employment
- Informational Materials
- Generally-available discounts



# Gifts

5 C.F.R. §  
2635.203(b)

**These things are not considered gifts:**

- Coffee/Donuts
- Plaques, Certificates, Trophies
- Loans available to the public
- Prizes from contests/events
- Things you pay fair market value for
- Attendance if presenting information on behalf of the DoD







## Gifts—Common Questions

**Last night at the movies I asked  
if they had a military discount.  
Was that improper?**



## Gifts—Common Questions

**I went to a meeting with my boss and they gave me an \$8 lanyard and a \$14 notepad.**

**Can I keep them?**



## Gifts—Common Questions

**Last weekend my friends and I were in our SDBs and ate at a restaurant in town. Someone picked up the tab to thank us for our service. What do we do?**



# Gifts Between Employees

5 C.F.R. § 2635.302

5 CFR § 3601.104

QUICKMAN § XV

**General Rule 1:** Subordinates should **not** give gifts to superiors.

**General Rule 2:** An employee may **not**, directly or indirectly, accept a gift from an employee receiving less pay

These rules have several exceptions



# Gifts Between Employees - Exceptions

5 C.F.R. § 2635.304

5 CFR § 3601.104

**Unsolicited** gifts given on an **occasional** basis, if:

- \$10 or less per occasion
- Shared food/refreshments in an office
- Personal hospitality at a residence
- Hostess gifts



# Gifts Between Employees - Exceptions

5 C.F.R. § 2635.304

5 CFR § 3601.104

Special **infrequent** occasions:

- Marriage
- Condolence
- Birth/adoption of child
- Occasions that terminate the senior/subordinate relationship



# Group Gifts

5 C.F.R. § 2635.304

5 CFR § 3601.104

May solicit funds for gift to superior or other employee, but:

- Contributions must be voluntary
- Cannot ask for more than \$10
- Total value of the gift cannot exceed \$480 (went up from \$300 on 30Mar2023)



## Scenario and Knowledge Check 8

**What if the Chief's Mess, the First Class Petty Officers' Association, and the Wardroom all want to give a gift to the CO when he retires?**





# Commercial Dealings

JER § 2-504

**General Rule:** Do not sell things to your subordinates or their family members.

**Exception: No coercion.**

- Retail establishment off duty
- Non-commercial personal or real property



JER § 2-400

# Fundraising

**General Rule:** Do not use your uniform, title, position, or authority to fundraise, and do not fundraise in the workplace.

**Exceptions:**

- CFC, NMCRS
- “By our own, for our own”(“BOOFOO”)

**Contact a JAG before you fundraise!**



# Permissible Political Activity

DoD Directive  
1344.10

You **may**:

- Register to vote and vote
- Encourage others to participate in the political process
- Join a political club
- Sign petitions
- Attend meetings/rallies as a spectator
- Donate money to political campaigns
- Express purely personal opinions (**caution**)
- “like” or “follow” a candidate/party on social media



# Impermissible Political Activity

DoD Directive  
1344.10

You may **not**:

- Campaign/fundraise for a candidate
- Hold public office (\*special reservist rules)
- Speak on behalf of a candidate
- Distribute partisan political literature
- Have political posters in gov't housing
- Have large bumper stickers or signs on POV
- Wear your uniform to a political meeting/rally
- “share” a candidate/party/fundraising post on social media



## Political Activity—Common Questions

---

**Can my spouse host a political event in our home?**



## What To Avoid

### **Sgt Gary Stein, USMC**

- 9 years on active duty
- Created the Armed Forces Tea Party Facebook Group
- “As an active-duty Marine, I say, ‘Screw Obama,’ and I will not follow the orders from him.’”
- The president is “the ‘domestic enemy’ our oath speaks about.”
- Other Than Honorable (OTH) discharge

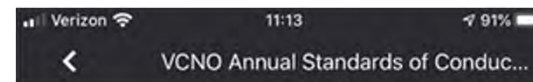




# VCNO Standards of Conduct Guidance



This application provides overarching guidance on standards of conduct, as well as targeted summaries, tools, and references for the most frequently encountered standards of conduct topics.



  
DEPARTMENT OF THE NAVY  
VICE CHIEF OF NAVAL OPERATIONS  
2000 NAVY PENTAGON  
WASHINGTON DC 20350-2000

IN REPLY REFER TO:  
5370  
Ser N09/19U112904  
22 Apr 2019

## MEMORANDUM FOR ALL FLAG OFFICERS

Subj: ANNUAL STANDARDS OF CONDUCT GUIDANCE

Encl: (1) Supplement to the Standards of Conduct Guidance

1. In this era of great power competition, what sets us apart is not our platforms, our weapons systems, or our immense technological capability – it is our people. In a world of constant change where victory is never pre-ordained, our people form the connective tissue between human and machine, humility and arrogance, sacrifice and greed, and right and wrong. While innovation and dynamism pervade every element of society, the character and honor of our Sailors remains the only reliable and steady source of strength as we navigate complex operational and cultural environments.



## Ethics Wrap-up

- If you have a question, ASK! Ignorance will not excuse a violation of the rules.
- Appearance itself is a violation.
- For travel, it's about convenience for the government, not convenience for you





# COURSE WRAP-UP

- WHY IS IT IMPORTANT TO FOLLOW LEGAL PRINCIPLES?
- WHERE CAN I ACCESS LEGAL ADVICE?
- PUBLIC TRUST AND DUTY AS AN OFFICER TO CONDUCT ONESELF LAWFULLY AND ETHICALLY



# QUESTIONS?